IN THE HIGH COURT OF SOUTH AFRICA
(EASTERN CAPE HIGH COURT,)

CASE NUMBER:

In the matter between:

APPLICANT

and

THE STATE **RESPONDENT**

RESPONDENT'S HEADS OF ARGUMENT

INTRODUCTION

1.

1.1 The applicant is lodging an application for leave to appeal against the refusal of his petition by this Honourable Court, as well as an application for condonation for the late filing of the above mentioned application for leave to appeal .

AD CONDONATION

2.

2.1 The respondent hereby does not oppose the application for condonation as substantial reasons are forwarded by the applicant. It is humbly submitted that the application for condonation be granted.

AD LEAVE TO APPEAL

3.

3.1 The applicant's constitutional right to a fair trial was not infringed upon. This argument by the applicant is based on the allegation that his legal representative in the trial court was not familiar with the applicant's defence nor the merits of the case. This argument is vague and without any merit.

3.2 Where the applicant did not take any steps to withdraw his council's mandate and had not expressed any disagreement with his legal representative's conduct, until after the verdict, it cannot be argued that the trial was irregular and the verdict cannot be challenged on appeal.

S v Matonsi 1953 (2) SA 450 (A)

3.3 I respectfully also submit that if a complaint regarding the competence of a legal representative is found to be a ground for an irregularity, it would lead to a situation where there is no finality in a criminal matter, until the proficiency of the legal representative has been adjudicated.

S v Bennett 1994 (1) SACR 3982(C) at 398 g

The applicant was legally represented in the trial court and had consulted with his legal representative. It is respectfully submitted that this should be accepted, as the contrary is not alleged.

Record p. 2 line 13 – 25

p. 3 line 5 – 10

5.

After the plea of not guilty in the trial court, the applicant was afforded an opportunity to confirm what was conveyed by his legal representative. The applicant, at this stage, made no mention of the fact that he could not properly consult with his legal representative.

Record p. 3 line 8 –10

6.

The State firstly led the evidence of the complainant. He was cross examined by the legal representative, which clearly disclosed the defence version, albeit without any merit. During these proceedings the applicant never mentioned to the Magistrate that he was unsatisfied about the manner in which his instructions were carried out. He further more had ample opportunity to do so, as the court adjourned after the testimony of the second state witness.

Record p. 3 line 20 – p. 20 line 20

p. 30 line 10

“ Whether a defence was so incompetent that it made the trial unfair is once again a factual question that does not depend upon the degree of *ex post facto* dissatisfaction of the litigant. Convicted persons are seldom satisfied with the performance of their defence council.”

As per Harms AJ in S v Halgryn 2002 (2) SACR 211 (SCA) at 216 h-i

“ The assessment must be objective, usually, if not invariably, without the benefit of hindsight. The court must place itself in the shoes of the defence council..... The failure to take certain steps, such as to consult, stands on a different footing from the failure to cross-examine effectively..... in the latter instance, where council’s discretion is involved, the scope for complaint is limited.”

As per Harms AJ in S v Halgryn 2002 (2) SACR (SCA) at 216 i- j and 217 a-b

7.

There were many similarities between the version of the state’s witnesses and that of the applicant. From cross- examination it is clear that the fact that was disputed, was whether sexual penetration did take place or not. This aspect was canvassed during cross-examination by the applicant’s legal representative. The legal representative however did not dispute whether intercourse took place or not, however the defence by the applicant that intercourse did not take place, can be inferred from the context of the cross-examination.

8.

At the end of the state's case the applicant chose to testify under oath. He was given a thorough opportunity, by his legal representative, to place his version on record. At the end of his examination in chief, he was even given opportunity to add anything to his testimony if he wishes to. At this stage of the proceedings the applicant did not make any mention that he was unsatisfied about his representation.

Record p. 35 line 15 – p.49 line 20

9.

During evidence in chief the version and the defence of the applicant became evident. He denied having committed an act of sexual penetration, and further alleged that the state witnesses were falsely implicating him.

Record p. 38 line 15 – 20

p. 41 line 5 – 10

10.

The factual questions in dispute was therefore limited to the abovementioned. The applicant was however unable to provide any reasons why he would be falsely implicated and he conceded that he had a good relationship with the first two witnesses.

Record p. 45 line 23 – 25

p. 48 line 15 – 25

11.

The argument that the applicant did not have proper representation during the trial, are based on allegations made by the applicant after his conviction and sentence, and are unsubstantiated.

It is contended in the applicant's heads of argument, that the legal representative should have cross- examined the complainant and his mother on the fact that they met the applicant the morning after the incident. This is however only mentioned by the accused in his testimony, and the argument is thus based on the speculation, that the applicant did disclose this to his legal representative during consultation.

Record p. 39 line 5 – 10

12.

The magistrate therefore did not misdirect himself. The conviction was based on an evaluation off all the evidence placed before the trial court and not on the competence of the Applicant's legal representative.

13.

It is further argued that the Magistrate erred in convicting the applicant for reasons alluded in par. 6 – 11 of the application for leave to appeal. I will now deal with these issues.

13.1 The complainant's testimony was that he only woke up when he felt that the applicant had penetrated his anus. It can therefore not be argued that he was suppose to explain how his underwear was undressed, as this would have called for speculation on his

part.

Record p. 5 line 9 - 13

13.2 It is stated that the State failed to set out the circumstances in which the complainants underwear was removed, and therefore the state failed to proof its case. This argument is clearly incorrect in the light of the testimony of the complainant that he was asleep. It can hardly be argued this one aspect led to the state not proving its case.

Record p. 5 line 1 - 5

13.3 It was never alleged during the trial that the complainant was intoxicated to the exstent that he had been mistaken whether he was raped or not. This is contrary to the version of the applicant that he was falsely implicated, and is a completely new allegation.

13.4 The conviction by the Magistrate was not based only on the fact that the complainants underwear were bloodstained. This aspect needs to be assessed with the totality of the evidence adduced.

13.5 It is important to note that the complainant only went for a medical examination after a reasonable amount of time had lapsed. The Medical report is thus irrelevant as it cannot corroborate nor refute penetration. The complainant gave a credible explanation why he did not report the incident immediately to the police.

Record p. 5 line 15 – 18

14.

The improbabilities with regard to the complainant's testimony, listed in par. 11 of the application, were explained satisfactory during his testimony. These explanations given by the complainant contributes to his credibility. There is also corroboration for the testimony of the complainant that he reported the incident at his first opportunity to his mother.

Record p. 22 line 10 - 15

15.

The Magistrate correctly applied the cautionary rule with regard to a single witness and correctly found that the complainant was a credible and reliable witness.

Record p. 64 line 8 - 20

16.

The Magistrate correctly found that the version of the applicant, in the light of the totality of the evidence, is not reasonably possibly true.

17.

It is my submission that their Lordship Messrs correctly refused the applicant's petition on 27th August 2010.

I hereby request that the Application for Leave to Appeal against the abovementioned order be refused.

DATED AT [redacted] 2010.

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[redacted]

TO: THE REGISTRAR

HIGH COURT

M[redacted]

AND TO: I[redacted]

M[redacted]

P[redacted]

P[redacted]

c/o V[redacted]

O[redacted]

2[redacted]

M[redacted]

6[redacted]

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